

24STCV06168 24STCV06168

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV06168 Hearing Date: September 18, 2026 Dept: 617

Dept.

617

Date:

9-18-26

Case

#: 24STCV06168

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendant, Diane Strickfaden

RESPONDING

PARTY: Plaintiff, Kelly Nicole Deckers

RELIEF

REQUESTED

Demurrer

to Fourth and Seventh Causes of Action in Third Amended Complaint

SUMMARY

OF ACTION

Plaintiff

Kelly Nicole Deckers sued her former employer, Defendant City of Redondo Beach, asserting numerous violations of the Fair Employment and Housing Act. After two demurrers were sustained, Plaintiff filed a Third Amended Complaint on November 21, 2025. Plaintiff alleges that the City discriminated against her and that its employees harassed her because of her need to attend oncology appointments due to her prior cancer diagnosis. Plaintiff also brings a defamation claim against the City, Redondo Beach Police Department Communications Supervisor Jason Kilpatrick, and City Director of Human Resources Diane Strickfaden. On April 6, 2026, the Court overruled the City's demurrer to the fourth and seventh causes of action in Plaintiff's Third Amended Complaint for harassment and defamation. On June 24, 2026, the Court overruled Kilpatrick's demurrer to the same claims.

RULING: Overruled.

Defendant

Strickfaden demurs to the fourth and seventh causes of action in Plaintiff's Third Amended Complaint for harassment and defamation, arguing that Plaintiff fails to state her claims. Plaintiff opposes the demurrer, contending that the harassment claim is not asserted against Strickfaden and that she has adequately pled her defamation claim. Strickfaden's demurrer is overruled.

As

an initial matter, Strickfaden does not have standing to demur to the harassment claim because it is only asserted against the City. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 ["Allegations of misconduct directed against one defendant, however, do not state a cause of action against another defendant against whom the allegations of misconduct are not directed"].) Allegations of Strickfaden's harassing conduct are only alleged for the purposes of establishing the City's liability. [TAC ¶ 55.] Strickfaden's demurrer to the harassment claim is therefore overruled and the remaining issue is her challenge to the defamation cause of action.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311,

318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Seventh

Cause of Action: Defamation

Strickfaden

argues that Plaintiff fails to state a defamation claim because she does not allege who made the purportedly defamatory statements, the contents of the statements, and the manner and context in which they were made. She also contends that Plaintiff fails to adequately allege that the statements were made with malice and thus outside the scope of an applicable privilege. Finally, Strickfaden argues that assertion of the defamation claim against her violates the Court’s January 27, 2025 order prohibiting Plaintiff from adding new causes of action in her amended complaint.

Strickfaden’s

arguments as to the insufficiency of the defamation claim are unavailing for the same reasons discussed in the Court’s April 6, 2026 and June 24, 2026 orders overruling the City and Kilpatrick’s demurrers. Plaintiff adequately alleges the content and context of the purportedly defamatory statements because she states that Strickfaden told her prospective employers that “(1) Plaintiff was in litigation against City, (2) Plaintiff was not eligible for rehire by City, and (3) Plaintiff had been disciplined while employed by City.” [TAC ¶¶ 80-83.] Plaintiff’s allegations are also sufficient whether she is pleading libel or slander. Slander “can be charged by alleging the substance of the defamatory

statement” (Okun v. Superior Court (1981) 29 Cal.3d 442, 458) and less particularity is needed for alleging libel where, as here, “it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.” (Id. at p. 458.) Again, even if Strickfaden made the statements via written references, there is no indication that Plaintiff had access to the references to spell out the words verbatim in her complaint. And Plaintiff sufficiently alleges malice because she claims that Strickfaden knew the statements were false and published them “with the intention of blackballing Plaintiff from employment with any police department.” [TAC ¶ 82.] These allegations therefore defeat Strickfaden’s arguments regarding the inadequacies of Plaintiff’s claim.

Plaintiff

has also not violated the Court’s prior order by asserting the defamation claim against Strickfaden. That order only restricted Plaintiff from adding new causes of action. Strickfaden was a named defendant in the First Amended Complaint, and the Third Amended Complaint merely adds specificity to the alleged defamatory statements. Strickfaden’s demurrer to the defamation cause of action is thus overruled.

Strickfaden

to answer the Third Amended Complaint within 10 days of this order.

Strickfaden

to give notice.